



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

April 11, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 14275
(EIGHTH REVISION)

EXPIRATION DATE: 2026-12-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Hawk FRP, LLC
Gainesville, TX
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, marking, sale and use of non-DOT specification cargo tank motor vehicle conforming with all regulations applicable to DOT Specification 412/407 cargo tank motor vehicles, except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 107.503(b) and (c) in that the manufacturer is not required to hold an ASME U stamp or National Board R stamp; §§ 173.241, 173.242 and 173.243 in that a non-DOT specification cargo tank, constructed of glass fiber reinforced plastic, is not authorized, except as specified herein.

Tracking Number: 2023036019

5. BASIS: This special permit is based on the application of Hawk FRP LLC dated January 18, 2023, submitted in accordance with § 107.109 and additional information dated March 31, 2023.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Class 8 material authorized to be transported in a lined DOT 412 cargo tank, Class 8 liquid and solid waste materials/specific chemical name or generic description as appropriate	8	As appropriate	I, II or III
Class 3 liquid or solid waste materials/specific chemical name or generic description as appropriate	3	As appropriate	I, II or III
Division 6.1 liquid or solid waste materials/specific chemical name or generic description as appropriate	6.1	As appropriate	I, II or III
Class 9 liquid or solid waste materials/specific chemical name or generic description as appropriate	9	As appropriate	III

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Packaging prescribed is a non-DOT specification glass fiber reinforced plastic cargo tank conforming with all regulations applicable to a DOT Specification 412/407 cargo tank motor vehicle, except as specified herein. Each tank must have a design pressure of at least 35 psig and a design margin of 7.0:1. Maximum tank capacity may not exceed 5500 gallons. Each tank must be designed and constructed in accordance with Hawk FRP drawing number 704 GW/Tank barrel specification HCTFRP-1943 and with calculations and specifications on file with the Office of Hazardous Materials Safety (OHMS). Each tank must be in compliance with §§ 173.241, 173.242 or 173.243, as prescribed in the Hazardous Materials Table (§ 172.101), except that Special Provisions, B15 and B23 are waived. In addition, each tank must meet all requirements for a DOT 407 or DOT 412 Specification cargo tank motor vehicle (§§ 178.345 and 178.348), except as follows:

- (1) §§ 178.345-1, 178.347-1 and 178.348-1: Any references to ASME Code requirements do not apply.
- (2) §§ 178.345-2 and 3; 178.347-2 and 178.348-2: Type of material, wall thickness and lining requirements do not apply. Tank shell, heads and fittings must be constructed of GFRP in accordance with the data on file with the OHMSAPD. Shell design must be based on extreme dynamic loadings described in § 178.345-3(c) (2).
- (3) § 178.345-4: Joint weld requirements do not apply.
- (4) § 178.345-7: Circumferential reinforcement requirements do not apply.
- (5) § 178.345-10(c): Pressure relief provisions for location do not apply.
- (6) § 178.345-14: Specification plate and name plate requirements must be appropriately modified to reflect compliance with terms of this special permit.
- (7) § 178.345-15 Certification: The manufacturer's certificate retained by the tank owner must be appropriately modified to reflect compliance with terms of this special permit.
- (8) § 180.413: Repairs must be performed by the tank manufacturer or by a repair facility approved by Hawk FRP. Any modification, stretching or rebarrelling must be authorized in writing by OHMS.

b. OPERATIONAL CONTROLS:

- (1) Tanks that are to be used in transporting Class 3 waste materials must be equipped with a spring loaded relief valve.
- (2) The compatibility of commodities and the GFRP cargo tank must be based on ASTM C 581 "Standard Test Method for Chemical Resistance of Thermosetting Resins Used in Glass Fiber Reinforced Structures". Test reports must be maintained by the owner or manufacturer for as long as the cargo tank remains in active operation.

c. TESTING: Initial qualification testing must be in accordance with § 180.405, except that any references to ASME Code requirements do not apply. Periodic requalification must include a hydrostatic test and an annual inspection of lining, which

must be performed as described in manufacturer's application. In addition to those items required to be examined by the visual inspections specified in § 180.407(d) and (e), the visual inspections must include detection of cracks, gouges, debonding at saddles, and liner deterioration.

d. The grantee of the special permit shall inform the OHMS of the person who is manufacturing the GFRP shells under the terms of the special permit. The grantee may not utilize a new person to manufacture the GFRP shells unless acknowledged in writing by OHMS. Persons manufacturing the GFRP shells may be inspected by PHMSA or other government agencies to verify their capability to perform their manufacturing functions authorized under the terms of the special permit.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

f. The Manufacturer's Data Report for the first cargo tank fabricated must be submitted to the OHMS prior to the initial shipment of hazardous materials.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notices of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae